

PASSED

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 10-03
Amendment by Addendum to Enactment 34 Section 201**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, tribal law (Enactment 34 Section 201) legislates that "the Governor of the Chickasaw Nation shall nominate a voting citizen of the Chickasaw Nation to serve as the [Gaming] Commissioner, subject to confirmation by Ordinance," and

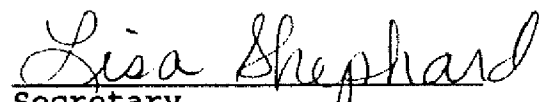
WHEREAS, there is no provision in Enactment 34 for an interim Gaming Commissioner to serve in the event the office is vacated by death or resignation.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature does hereby amend Enactment 34 by the addition of a new paragraph in Section 201:

In the event of the death or resignation of the Gaming Commissioner, the Governor may commission a full citizen to serve in the capacity of Interim Commissioner for a period of time not to exceed sixty (60) days, during which time the Governor shall nominate and present to the Tribal Legislature, for confirmation, a Gaming Commissioner. The Interim Commissioner shall have all powers of the Gaming Commissioner.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on November 20, 1992, by a vote of 13 ayes, 0 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur:


Bill Anoatubby, Governor
The Chickasaw Nation

Date:

NOV 23 1992

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Explanation: Tribal law (Enactment 34 Section 201) legislates that "the Governor of the Chickasaw Nation shall nominate a voting citizen of the Chickasaw Nation to serve as the [Gaming] Commissioner, subject to confirmation by Ordinance," and there is no provision in Enactment 34 for an interim Gaming Commissioner to serve in the event the office is vacated by death or resignation. The Chickasaw Tribal Legislature amends Enactment 34 by the addition of a new paragraph in Section 201:

In the event of the death or resignation of the Gaming Commissioner, the Governor may commission a full citizen to serve in the capacity of Interim Commissioner for a period of time not to exceed sixty (60) days, during which time the Governor shall nominate and present to the Tribal Legislature, for confirmation, a Gaming Commissioner. The Interim Commissioner shall have all powers of the Gaming Commissioner.